

25CHCV02505 25CHCV02505

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Case Number: 25CHCV02505 Hearing Date: July 21, 2026 Dept: F43

Dept. F43

Hearing Date: 07-21-26

Case # 25CHCV02505, Quintero v.

Geragosian

Trial Date: 10-30-28

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES AND SPECIAL INTERROGATORIES

MOVING PARTY: Defendant Saro Geragosian

RESPONDING PARTY: Plaintiff Lilia Quintero

RELIEF REQUESTED

Order compelling plaintiff Lilia Quintero's objection-free responses to defendant's first sets of form interrogatories and special interrogatories and imposing monetary sanctions of \$435 against plaintiff Quintero and her counsel of record, Igor Fradkin and Downtown LA Law Group, jointly and severally.

RULING: Motion is granted. The court awards Defendant \$435 in monetary sanctions.

SUMMARY OF ACTION

The personal injury action arises out of a vehicle collision that occurred on State Route 118 on August 31, 2023. Plaintiffs Lilia Quintero and Daniela Haro allege that defendant Saro Geragosian (Defendant) collided with their vehicle while changing lanes and immediately fled the scene of the collision. As a result, Plaintiffs suffered injuries and damages. On July 16, 2025, Plaintiffs filed a complaint against Defendant, pleading four causes of action: (1) motor vehicle; (2) negligence; (3) misdemeanor hit and run in violation of Vehicle Code section 20001, subdivision (a); and (4) intentional infliction of emotional distress.

On October 8, 2025, Defendant served plaintiff Lilia Quintero with his first sets of form and special interrogatories. (Declaration of Nageen C. Jalali ¶ 2, Exh. A.) The response deadline was November 10, 2025. Defendant granted plaintiff Quintero six deadline extensions from November 7, 2025 through January 19, 2026, and denied a seventh extension request. (Id. ¶¶ 3-4, Exh.

B.) On January 30, 2026, defense counsel emailed plaintiff's counsel, requesting a status update. (Id. ¶ 4, Exh. B at p. 1.) Plaintiff Quintero unilaterally selected a responsive deadline of February 2, 2026, to serve responses. (Id. ¶ 4.) No responses were served by that date.

On May 27, 2026, Defendant filed the instant motion to compel plaintiff Lilia Quintero's objection-free, verified responses to his first sets of form interrogatories and special interrogatories and to impose \$435 in monetary sanctions against plaintiff Quintero and her counsel of record, jointly and severally.

On July 17, 2026, plaintiff Quintero filed a late opposition, asserting code-compliant responses were served on July 16, 2026, and sanctions should be denied because the delay was due to change in handling attorneys.

ANALYSIS

A. Compelling Responses to Interrogatories

A propounding party may move to compel responses to form or special interrogatories where the responding party fails to provide any

responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When the propounding party serves more than 35 special interrogatories, the responding need only respond to the first 35 special interrogatories unless the propounding party attaches a declaration of additional discovery to the special interrogatories. (Code Civ. Proc., §§ 2030.030, subds. (b)-(c), 2030.50, 2030.070, subd. (a).) However, if the responding party fails to timely object to additional special interrogatories, the responding party waives the objection. (See Leach, supra, 111 Cal.App.3d at pp. 905-906.)

After reviewing the moving papers, the court finds Defendant properly served plaintiff Quintero's counsel, Igor Fradkin, with the special interrogatories and form interrogatories. But plaintiff Quintero failed to serve responses by the original deadline, the subsequent deadline extensions, or February 2, 2026.

Plaintiff Quintero's late opposition insists responses to the interrogatories were served on July 16, 2026, but failed to attach the responses to the opposing declaration. (Declaration of Gevork Gazaryan ¶ 5, Exhs. A, B.) Plaintiff's current counsel, Gevork Gazaryan, claims counsel was working diligently on responses and that the prior handling attorney, Mr. Fradkin, requested extensions due to difficulty connecting with plaintiff Quintero. (Id. ¶ 4.) Thus, the missed deadline was due to inadvertence. However, Mr. Gazaryan fails to state when handling counsel changed or why the other individuals from his first who were copied on the email chains did not address the delay issue sooner.

As such, the court finds plaintiffs' counsel fails to provide a substantial justification for the delayed responses or proof that the responses were actually completed and served.

Therefore, the court grants defendant Saro Geragosian's motion to compel plaintiff Lilia Quintero's responses to his first sets of form interrogatories and special interrogatories.

Plaintiff Quintero is ordered to serve objection-free, verified responses and responsive documents within 30 days of this order.

B. Sanctions

Defendant asks the court to impose \$435 in monetary sanctions against plaintiff Quintero and her counsel of record. (Jalali Decl. ¶ 6.)

The court must impose sanctions against any party who "unsuccessfully makes or opposes a motion to compel responses to interrogatories unless, it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).) The court may also award sanctions even if "the requested discovery is provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1030(a).)

For the reasons stated above in Section A, Defendant is entitled to sanctions.

Defendant's counsel, Nageen C. Jalali, charges \$250 per hour. (Jalali Decl. ¶ 6.) The request includes: (1) 1.5 hours preparing the motion—\$375; and (2) a \$60 filing fee.

The court finds the requested hourly rate and time billed is reasonable.

Therefore, the court grants Defendant's request for \$435 in monetary sanctions.

CONCLUSION and ORDER

The court grants defendant Saro Geragosian's motion to compel plaintiff Lilia Quintero's responses to defendant's first sets of form interrogatories and special interrogatories.

The court orders plaintiff Quintero to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The court awards defendant Saro Geragosian \$435 in monetary sanctions. Plaintiff Quintero and her attorney of record are ordered to pay defense counsel within thirty (30) days of the issuing of order.

Defendant Saro Geragosian to give notice.